

Jabar Singh v. State of U.P. and others

High Court of Judicature at Allahabad · Division Bench · 26 November 2019 · WRIT-C No. 38287 of 2019 · WRIT - C No. 38287 of 2019 · **Writ disposed; EE to hear objections and pass speaking order; s.127 liberty.**

HEADNOTE

On a writ to quash a recovery citation alleged to have been issued without hearing and without following the U.P. Electricity Supply Code, 2005, the Allahabad High Court did not decide those allegations. It directed the consumer to appear before the Executive Engineer with objections, required a speaking final order, stayed coercive recovery for a limited period, and reserved liberty to appeal under section 127 of the Electricity Act, 2003 against that final order.

FACTUAL SUMMARY

Jabar Singh challenged a recovery citation dated 16 July 2019 before the Allahabad High Court, seeking certiorari to quash it. He alleged that the electricity department was taking coercive recovery steps without giving him a hearing and without following the U.P. Electricity Supply Code, 2005. Counsel for the Electricity Department appeared. The Division Bench did not try the validity of the citation or the alleged Supply Code breach, and instead issued directions for a hearing before the Executive Engineer.

HOLDING-UNITS

HOLDING-UNIT · EA2003::127

recovery citation — speaking final order and section 127 appeal

HOLDING

Without deciding alleged want of hearing or Supply Code breach, a writ to quash a recovery citation may be disposed of by directing the consumer to appear before the Executive Engineer with objections and evidence, requiring a speaking and reasoned final order within a fixed time, staying coercive recovery for a limited period (vacated on default or non-appearance, which also revives the citation), and leaving the consumer to appeal under section 127 of the Electricity Act, 2003 if aggrieved by that final order. ¶ 1

PRINCIPLE TAGS

final-assessment-order-relegates-assessee-to-section-127-appeal

On a writ to quash a recovery citation alleged to have been issued without hearing and without following the U.P. Electricity Supply Code, 2005, the Allahabad High Court did not decide those allegations.. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE RECOVERY CITATION DATED 16.07.2019 WAS ISSUED WITHOUT OPPORTUNITY OF HEARING OR IN BREACH OF THE U.P. ELECTRICITY SUPPLY CODE, 2005

The Court took a lenient view and directed a hearing before the Executive Engineer without deciding those allegations. ¶ 1